AS TO THE ADMISSIBILITY OF

Application No. 12175/86
by P. H. and
H. H.
against the United Kingdom

The European Commission of Human Rights sitting in private on 12 May 1988, the following members being present:

MM. C.A. NØRGAARD, President
J.A. FROWEIN
S. TRECHSEL
F. ERMACORA
G. SPERDUTI
E. BUSUTTIL
A.S. GÖZÜBÜYÜK
A. WEITZEL
J.-C. SOYER
H.G. SCHERMERS
H. DANELIUS
G. BATLINER
H. VANDENBERGHE
Mrs. G.H. THUNE
Sir Basil HALL
MM. F. MARTINEZ
C.L. ROZAKIS
Mrs. J. LIDDY

Mr. H.C. KRÜGER Secretary to the Commission

Having regard to Article 25 of the Convention for the Protection of Human Rights and Fundamental Freedoms;

Having regard to the application introduced on 4 September 1985 by P. H. and H. H. against the United Kingdom and registered on 22 May 1986 under file No. 12175/86;

Having regard to the report provided for in Rule 40 of the Rules of Procedure of the Commission;

Having deliberated;

Decides as follows:

THE FACTS

The first applicant, Ms. P. H. is a British citizen, born in 1948, and resident in London. She is a press and broadcasting secretary by profession. In the 1983 general election she was a parliamentary candidate for the Labour Party.

The second applicant, Ms. H. H. is a British citizen, born in 1950 and resident in London. She is a solicitor and Labour Member of Parliament.

Both applicants are represented, in the proceedings before the Commission, by Ms. Madeleine Colvin, Legal Officer, National Council for Civil Liberties (NCCL).

The application arises out of the alleged surveillance of the applicants by a branch of the Security Service (MI5). The facts as submitted by the parties may be summarised as follows.

The first applicant was General Secretary of the NCCL between September 1983 and May 1984. The second applicant was employed as legal officer by the NCCL from 1978 until 1982.

The NCCL is an unincorporated association whose aim is to assist in the maintenance of civil liberties, including freedom of speech, propaganda and assembly. The Council advances measures for the recovery and enlargement of such liberties in the United Kingdom. Pursuant to its Constitution, the Council is a non-party and non-denominational organisation. In order to achieve its aims the Council takes steps such as briefing and lobbying members of Parliament, submitting evidence to official enquiries, conducting research, issuing publications, and taking test cases to local and international courts. It sometimes sends impartial observers to monitor demonstrations as part of its functions to defend the right of freedom of assembly, but it does not sponsor or organise demonstrations of any kind.

The United Kingdom Government established for the exclusive purpose of the Defence of the Realm a Security Service which has direct access to the Prime Minister. The division of that service responsible for monitoring and combating internal subversion is known as MI5. The activities of the Security Service are governed by the published Directive of the Home Secretary to the Director-General of the Service, a Crown Servant, dated 24 September 1952 ("the Directive") as follows:

"1. In your appointment as Director-General of the Security Service you will be responsible to the Home Secretary personally. The Security Service is not, however, a part of the Home Office. On appropriate occasion you will have right of direct access to the Prime Minister.

2. The Security Service is part of the Defence Forces of the country. Its task is the Defence of the Realm as a whole, from external and internal dangers arising from attempts at espionage and sabotage, or from actions of persons and organisations whether directed from within or without the country, which may be judged to be subversive to the State.

3. You will take special care to see that the work of the Security Service is strictly limited to what is necessary for the purposes of this task.

4. It is essential that the Security Service should be kept absolutely free from any political bias or influence and nothing should be done that might lend colour to any suggestion that it is concerned with the interests of any particular section of the community, or with any other matter than the Defence of the Realm as a whole.

5. No enquiry is to be carried out on behalf of any Government Department unless you are satisfied that an important public interest bearing on the Defence of the Realm, as defined in paragraph 2, is at stake.

6. You and your staff will maintain the well-established convention whereby Ministers do not concern themselves with the detailed information which may be obtained by the Security Service in particular cases, but are furnished with such information only as may be necessary for the determination of any issue on which guidance is sought."

Members of the Security Service are public officials but

unlike, for example, police officers, immigration officers or officers of HM Customs and Excise, they have conferred on them no special powers whether under any law or by virtue of the Directive. Members of the Service are Crown Servants, subject to the disciplinary control of the Crown but are otherwise in no position different from private citizens. Their activities are constrained by the criminal law and the law of torts in the same way as the activities of citizens generally are so constrained. They are thus liable to criminal prosecution and civil proceedings in the same manner as ordinary citizens.

As revealed by a former officer of MI5 on a television programme broadcast on 8 March 1985 and in an affidavit dated and sworn for the purposes of judicial review proceedings in another case both applicants were classified as subversive and as communist sympathisers due to their prominent participation in the activities of the National Council for Civil Liberties.

The applicants claim that these "grave libels" were published within MI5 and were available for publication to other agencies with whom MI5 has a relationship. For example, the file concerning the second applicant would have been sent to the Cabinet Office on her election as an M.P. and would be used to assess her fitness for inclusion on parliamentary committees dealing with highly classified information. The files relating to the applicants recorded details of passport applications, data from surveillance by local police Special Branches and special agents, and references to them or by them picked up under warrants issued in relation to other persons directly subject to telephone or mail intercepts. Such intercepts, in the second applicant's case, are likely to include confidential conversations which she, as a practising solicitor, had with certain of her clients. The first applicant's file included information about her personal relationship with a former member of the Communist Party.

The applicants also state that surveillance of both applicants was continued after they had left the National Council for Civil Liberties on the basis that they were candidates for elected office. Such surveillance, it is alleged, might hinder their political career or other appointment to public office.

By letter dated 29 March 1985 addressed to the General Secretary of the NCCL, the Home Secretary declined to order an enquiry into the matters of which the applicants complain and failed to provide an assurance that they or the NCCL is not a target of secret surveillance.

The above allegations are neither confirmed nor denied by the respondent Government. They point out that the policy of successive Governments of the United Kingdom is not to disclose information about the operations of the Security Service or to comment on particular allegations.

COMPLAINTS

1. The applicants complain under Article 8 of the Convention that MI5's surveillance operations have breached the applicants' right to respect for their private lives. It has involved the recording of personal information gathered by State agencies, indirect interception of telephone calls and surveillance by State agents. The applicants complain that this information appears to include false and libellous statements, which may have been published to other State agencies. The applicants submit that there is no legal basis for this surveillance and that it is not necessary in a democratic society since they are not subversive or a threat in any way to the State. Such surveillance is not justified under Article 8 para. 2 of the Convention.

2. The applicants also complain under Article 10 of the Convention that the aformentioned surveillance amounts to an interference with their right to freedom of expression. In this regard they complain that the assessments made about them by the Secret Service may be used to damage them in their political or professional careers. This prospect may have a chilling effect on their expressions of honest opinion and is a potential reprisal for exercising their right of free speech.

3. They further complain under Article 11 of the Convention that their freedom of association is also denied by a state agency which imposes a special burden on those with whom they associate, namely the prospect of being designated "subversive" by virtue of the association.

4. The applicants finally complain under Article 13 of the Convention that no effective remedy exists in the United Kingdom before a national authority in respect of the aforementioned violations. There is no general law of privacy and the security services are exempted from data protection legislation. There is no jurisdictional basis in domestic law whereby the applicants can apply to a court or tribunal to obtain access to their files, correct misstatements, limit the information collected or control the extent of its dissemination.

PROCEEDINGS BEFORE THE COMMISSION

The application was introduced on 4 September 1985 and registered on 22 May 1986. In a decision dated 2 December 1986 the Commission decided that notice should be given to the respondent Government of the application and that the Government should be invited to submit observations on the admissiblity and merits of the application in so far as it raised issues under Articles 8, 10, 11 and 13 of the Convention. These observations were submitted on 29 May 1987. The applicants' observations in reply were received on 22 December 1987.

SUBMISSIONS OF THE PARTIES

The respondent Government

The respondent Government note that the operations of the Security Service, directly concerned as they are with the protection of national security, are of their very nature secret. It has for this reason been the consistent policy of successive Governments of the United Kingdom not to disclose information about the operations of the Security Service or to comment on particular allegations that are made about its operations. Consistently with this policy, the Government neither accept nor deny the facts on which the applicants rely. Nevertheless, in order to enable the Commission to consider the questions raised by the application, and for the purposes of these proceedings only, the submissions of the Government are made on the basis of the allegations as to fact made by the applicants.

Domestic law and practice

From June to September 1963 Lord Denning, one of the then most senior Judges of the Supreme Court, at the request of the Prime Minister, undertook an examination of the operation of the Security Service in the light of the resignation of the then Secretary of State for War. At paragraph 239 of his Report dated 16 September 1963 (Cmnd. 2152), Lord Denning, after hearing a considerable body of evidence, found general approval that the Directive embodied the

correct principles, which principles (inter alia) he summarised as follows:

"(1) The Head of the Security Service is responsible directly to the Home Secretary for the efficient and proper working of the Service and not in the ordinary way to the Prime Minister.

(2) The Security Service is, however, not a department of the Home Office. It operates independently under its own Director-General, but he can and does seek direction and guidance from the Home Secretary, subject always to the proviso that its activities must be absolutely free from any political bias or influence.

(3) The function of the Security Service is to defend the Realm as a whole from dangers which threaten it as a whole, such as espionage on behalf of a foreign Power, or internal organisations subversive of the State. For this purpose, it must collect information about individuals, and give it to those concerned. But it must not, even at the behest of a Minister or Government Department, take part in investigating the private lives of the individuals except in a matter bearing on the Defence of the Realm as a whole.

(4) The Head of the Security Service may approach the Prime Minister himself on matters of supreme importance and delicacy, but this is not to say that the Prime Minister has any direct responsiblity for the Security Service. He has certainly none in day-to-day matters. It would be a mistake for the Prime Minister to take such responsibility because he cannot in practice exercise adequate supervision, and he has not the secretariat for the purposes."

Lord Denning, at paragraph 240 of his Report, noted that "the result of these principles is that, if the Director-General of the Security Service is in doubt as to any aspect of his duties - as, for instance, when he gets information about a Minister or senior public servant indicating that he may be a security risk - he should take the responsibility for further action, that is to say, whether to take steps to eliminate the security risk or to put up with it. If a mistake is made, it is the Home Secretary who will be responsible to Parliament."

Article 8 of the Convention and
Article 13 of the Convention in conjunction with Article 8

In the light of the Court's judgment in the Leander Case (Eur. Court H.R., Leander judgment of 22 March 1987, Series A no. 116) and without prejudice to the merits of the applicants' claims under this head, the Government do not contest the admissibility of the applicants' complaint under Article 8 of the Convention or under Article 13 of the Convention with respect to their claims under Article 8.

Article 10 of the Convention

The Government point out that the Court in the Leander Case unanimously held that there had been no interference with the applicant's freedom to express opinions as protected by Article 10, holding that it was access to the public service and not freedom of expression which lay at the heart of the issue before the Court (see paras. 72 and 73).

It is submitted that the applicants' allegations likewise

disclose no interference with their right to freedom of expression. The applicants have at all times been free to express opinions whether of a political nature or otherwise, and no evidence has been adduced to suggest that the exercise of such freedom has been made subject to any "formalities, conditions, restrictions or penalties" or to any other interference by a public authority: no evidence has been adduced to show that any of the alleged measures complained of were aimed at punishing the applicants for exercising their right to express political or other opinions (cf. No. 10628/83, Dec. 14.10.85 to be published in D.R. 44). In so far as complaint is made that public statements or expressions of opinion by the applicants may have been "noted" or "collected" by the public authorities, it is submitted that such recording of public statements, even if established as a matter of fact, would not disclose any relevant interference with the applicants' right to freedom of expression. In so far as complaint is made that private expressions of opinion by the applicants have been similarly noted and collected, consistently with the Commission's approach in the Leander case, the complaint properly falls in any event to be considered under Article 8 as an interference with the applicants' right to respect for private life and not under Article 10, Article 8 being the lex specialis in relation to the protection of the right to privacy.

In so far as the applicants' complaint under Article 10 relates to the possible use by the public authorities of expressions of opinion by the applicants if and when considering the applicants "for positions requiring security clearance", it is submitted that, consistently with the reasoning of the Court in the Leander case, the complaint discloses no relevant interference with the applicants' freedom to express opinions, as protected by Article 10. The applicants do not allege that they have been refused appointment to any position requiring security clearance, still less that any such position has been refused on the basis of opinions expressed by them, whether publicly or privately, which were unrelated to national security and irrelevant to their suitability for the post in question. Nor has any evidence been adduced to show or suggest that, in breach of the Directive, any position has been refused to an applicant on the grounds of his or her political or other opinions when such opinions are irrelevant to national security and to the suitability of the applicant for the post in question.

In these circumstances the alleged fact that the opinions or attitudes of an individual might be taken into account in determining whether to appoint the individual concerned to a position requiring security clearance does not constitute a relevant interference with the exercise of the right to freedom of expression guaranteed by Article 10 para. 1 of the Convention.

Article 11 of the Convention

The Government submit that the substance of the applicants' complaint under Article 11 of the Convention appears to be that, through fear of being classified as "subversive" by a public authority, other individuals might be unwilling to associate with the applicants in the sense of being unwilling to meet or mix with them socially or professionally.

The Government first submit that, on its true interpretation, Article 11 para. 1 does not guarantee a right to associate in this sense, the Article being concerned with the right to form or be affiliated with a particular group or organisation (see No. 8317/78, McFeeley and others v. the United Kingdom, Dec. of 18.5.80, D.R. 20 p. 98, para. 114). This complaint should, therefore, be rejected as incompatible ratione materiae with the provisions of the Convention.

Even if the right guaranteed by Article 11 included the right to "associate" with persons of their own choosing, in the sense of

sharing their company, it is submitted that the applicants cannot claim to be victims of a violation of any such right by reason of the facts alleged. No complaint is made that any measure of the Government directly controlled, restricted or interfered with the right of the applicants to associate freely with persons of their own choosing: equally it is not suggested by the applicants that any relevant measure was designed to repress the right of the applicants to associate with such persons. In these circumstances there exists no factual basis for the applicants' assertion that their freedom to associate with others has been interfered with (cf. No. 7729/76, Agee v. the United Kingdom, Dec. 17.12.76, D.R. 7 p. 164, at p. 174; No. 8118/77, Omkarananda and another v. Switzerland, Dec. 19.3.81, D.R. 25 p. 105 at p. 118). The applicants' claim, even if substantiated on the facts, that the measures complained of had the indirect effect of deterring other persons from associating with them is not sufficient to give rise to any relevant interference with their right to freedom of association for the purposes of Article 11 of the Convention.

Article 13 of the Convention

The Government submit that the applicants' complaints under Articles 10 and 11 of the Convention are manifestly ill-founded as being both unsubstantiated on the facts and giving rise to no prima facie case of an interference with their rights guaranteed by para. 1 of either Article. In addition, with regard to the complaint of a breach of Article 11 of the Convention, it is the Government's submission that the applicants' complaint is incompatible ratione materiae with the Convention and accordingly does not concern "a right or freedom guaranteed by the Convention".

In these circumstances the applicants' complaints under Articles 10 and 11 disclose no arguable claim of a breach of either Article and this complaint must be dismissed as manifestly ill-founded.

The Applicants

The applicants point out that the history of NCCL demonstrates that it has never been a subversive organisation threatening the safety of the State or intending to undermine or overthrow Parliamentary democracy by political, industrial or violent means. On the contrary they claim that the Council's concern has always been to uphold the unwritten constitution of the United Kingdom in relation to individual freedom, and to draw attention to any lapse by Government agencies in complying with obligations in the field of human rights.

Article 8 of the Convention

The applicants point out that the methods of surveillance include, inter alia, the keeping of files on which would be placed the fullest possible personal details, a photograph, information received from the police special branch in the area in which the applicants lived, a note of appearances or references to, the applicants, which appeared in telephone and mail intercepts which were operating against other individuals or organisations and references to the applicants which would appear in the reports of MI5 agents.

The applicants state that NCCL has nothing whatsoever to do with subversion or overthrowing the constitution. It has always worked within the law in pursuing its various activities. Moreover, the applicants have never been convicted of a criminal offence nor deported from any country. It follows that neither the NCCL nor the applicants individually could be described as "subversive". It is accordingly submitted that any reliance upon paragraph 2 of Article 8 or Articles 10 and 11 of the Convention cannot justify an interference with the rights in question.

Article 10 of the Convention

It is submitted that Article 10 of the Convention goes further than merely outlawing governmental prohibition of the espousal of certain views when it seeks to safeguard the right of freedom of expression "without interference by a public authority". It must also outlaw interference which has the effect in practice of deterring people from expressing their views. Surveillance by the Secret Service of certain individuals because of the views that they hold and express has a "chilling" effect not only on them but on those they communicate with such that both sets of people will be deterred from expressing their true opinions and beliefs. This is compounded by the secrecy surrounding the Security Service such that it is not possible for an individual to know whether or not he or she is under a form of covert surveillance. Such a deterrent effect takes two forms. Firstly, persons with strong views in various matters may feel that surveillance will hinder their career prospects. It is not necessary to show that such surveillance does in fact impair their career prospects. It is enough to show that they genuinely believe that this could happen. Secondly, they are more generally deterred by the feeling that their views are "outside of the norm". The classification of people by the Security Service as "subversive" presents them as "outside the norm".

In the alternative, the interference with the affairs of the applicants did amount to a "formality, condition, restriction or penalty" on the expression of certain views by the applicants. Both applicants consider that their classification as "subversive" could have a damaging effect on their careers and future political ambitions, in particular if either of them should be appointed to a post in the Prime Minister's Office at some time in the future when they would require security clearance. Thus in practice they are penalised for the expression of views which are in accordance with the principles of the NCCL.

Article 11 of the Convention

The applicants claim an interference with their rights under this provision in the following respects:

1. that the interference of the Security Service in the present application defeats the purpose behind the NCCL by deterring potential supporters from associating with the applicants. This deterrence is compounded by the secrecy of the Security Service and the potential effect that surveillance on the association can have on the potential careers of members;

2. the potential impact that the surveillance by the Security Service and the classification as "subversive" will have on their careeers means that the applicants must make a choice between the proper functioning of the NCCL and their own futures. In addition, surveillance by the Security Service may prevent other potential members from associating, thereby denying the applicants the right of effective association. This provision entails not only a right to associate but also that the association is allowed to function properly. This was expressly recognised by the Court in the National Union of Belgian Police case (Eur. Court H.R., National Union of Belgian Police judgment of 22 October 1975, Series A no. 19).

Article 13 of the Convention

The applicants note that the Government concede the

admissibility of the present application under Article 13 taken in conjunction with Article 8 of the Convention. However, it is submitted that Article 13 is also breached in respect of the complaints under Articles 10 and 11 of the Convention.

They point out that notwithstanding the directive issued by Sir David Maxwell-Fyfe to the Director-General of the Security Service in September 1952 there exists no machinery by which the applicants can uphold their rights or even ensure that the guidelines laid down in that Directive are adhered to by the Security Service.

THE LAW

1. As regards Article 8 (Art. 8) of the Convention

The applicants state that they were the subject of surveillance by the Security Service, that information concerning their activities is kept on files maintained by the Security Service and that by reason of their association with the National Council for Civil Liberties (NCCL) they were classified as subversives and communist sympathisers by MI5 (the Security Service). They submit that the above secret surveillance constitutes an unjustified interference with their right to respect for private life as guaranteed by Article 8 (Art. 8) of the Convention. This provision states as follows:

"1. Everyone has the right to respect for his private and family life, his home and his correspondence.

2. There shall be no interference by a public authority with the exercise of this right except such as is in accordance with the law and is necessary in a democratic society in the interests of national security, public safety or the economic well-being of the country, for the prevention of disorder or crime, for the protection of health or morals, or for the protection of the rights and freedoms of others."

The Commission recalls that the European Court of Human Rights has held in the Leander case that the storing of information concerning a person's private life in a secret police register amounts to an interference with the right to respect for private life as guaranteed by Article 8 para. 1 (Art. 8-1) of the Convention (see Eur. Court H.R., Leander judgment of 26 March 1987, Series A no. 116, p. 22, para. 48).

It further notes that the respondent Government do not contest the admissibility of the applicants' complaints under this provision.

2. As regards Articles 10 and 11 (Art. 10, 11) of the Convention

The applicants complain under these provisions that the secret surveillance of their activities also constitutes a breach of Articles 10 and 11 (Art. 10, 11) of the Convention.

Article 10 (Art. 10) of the Convention provides as follows:

"1. Everyone has the right to freedom of expression. This right shall include freedom to hold opinions and to receive and impart information and ideas without interference by public authority and regardless of frontiers. ...

2. The exercise of these freedoms, since it carries with it duties and responsibiities, may be subject to such

formalities, conditions, restrictions or penalties as are prescribed by law and are necessary in a democratic society, in the interests of national security, territorial integrity or public safety, for the prevention of disorder or crime, for the protection of health or morals, for the protection of the reputation or rights of others, for preventing the disclosure of information received in confidence, or for maintaining the authority and impartiality of the judiciary."

In this context the applicants submit inter alia that as a result of the secret surveillance to which they have been subjected they and those with whom they are in communication will be deterred from expressing their true opinions and beliefs. Furthermore, they contend that being classified as "subversive" by the Security Service may prejudice their future career prospects and political ambitions and amounts to a penalty for the expression of particular views. They stress, in particular, that the activities of NCCL could not in any way be described as "subversive".

The respondent Government submit inter alia that the applicants' allegations, even if substantiated, do not amount to an interference with their freedom of expression guaranteed under this provision. They point out that the applicants have at all times been free to express their opinions and that they have failed to adduce any evidence to show that any of the measures were aimed at punishing the applicants for expressing their views or that they have actually been refused any position or appointment on the basis of the opinions expresssed by them.

Article 11 (Art. 11) of the Convention reads as follows:

"1. Everyone has the right to freedom of peaceful assembly and to freedom of association with others, including the right to form and join trade unions for the protection of his interests.
...

2. No restrictions shall be placed on the exercise of these rights other than such as are prescribed by law and are necessary in a democratic society in the interests of national security or public safety, for the prevention of disorder or crime, for the protection of health or morals or for the protection of the rights and freedoms of others. This Article shall not prevent the imposition of lawful restrictions on the exercise of these rights by members of the armed forces, of the police or of the administration of the State."

The applicants complain under this provision that, as a result of their being labelled "subversive" by the Security Service, potential supporters of the NCCL may have been inhibited from associating with the applicants. They also submit that being classified as "subversives" may have a prejudicial impact on their careers, thereby obliging the applicants to choose between their careers and further association with NCCL.

The respondent Government contend firstly that Article 11 para. 1 (Art. 11-1) does not guarantee a right of association in the sense of meeting or mixing with other people socially and professionally. Secondly, they maintain that the applicants have not substantiated their complaint that their freedom to associate with persons of their own choosing has been, in any respect, controlled or restricted as a result of the measures of surveillance.

The Commission considers, in the light of the above submissions and the fact that these complaints are based on the same facts as the Article 8 (Art. 8) complaint, that the applicants' complaints under Articles 10 and 11 (Art. 10, 11) of the Convention

raise complex issues of law and fact, the determination of which should depend on an examination of the merits of the complaints.

3. As regards Article 13 (Art. 13) of the Convention in conjunction with Articles 8, 10 and 11 (Art. 8, 10, 11)

The applicants submit that there exists no effective remedy under the law of the United Kingdom in respect of their complaints under Articles 8, 10 and 11 (Art. 8, 10, 11) of the Convention. They contend that this constitutes a breach of Article 13 (Art. 13) of the Convention. Insofar as the applicants complain of a breach of Article 13 (Art. 13) of the Convention in conjunction with Article 8 (Art. 8), the Government have conceded the admissibility of the complaint without prejudice to the merits of the claim. However, they contend that the remainder of the Article 13 (Art. 13) complaint should be rejected as manifestly ill-founded since the applicants have not established any arguable claim of a breach of either Article 10 or 11 (Art. 10, 11) of the Convention.

The Commission considers that this part of the application also raises difficult questions of law and fact under Article 13 (Art. 13), the determination of which should depend on an examination of the merits of the application as a whole.

The Commission concludes that the application is, as a whole, admissible without prejudice to the merits.

For these reasons, the Commission

DECLARES THE APPLICATION ADMISSIBLE

Secretary to the Commission — President of the Commission

(H. C. KRÜGER) — (C. A. NØRGAARD)